

third instance an objection to the use of it was accompanied, by the declaration of one of the most experienced and accurate members of the Philadelphia bar, that it had never been known to the Pennsylvania practice.⁴⁸

The weight of the cases however may be considered in favor of the *attachment*. If by the liberal construction which the act has received, the remedy prescribed in it has become inadequate to the distribution of complete justice between the parties, the resorting to a new remedy appears to be a natural consequence of extending the law to cases not within the letter of it. And we may therefore consider an attachment to be a means of compelling the performance of an award where a judgment and execution would not afford a complete remedy.⁴⁹

With a view to facilitate arbitration, without professional aid, and in cases not depending in court, the legislature of Pennsylvania in 1806⁵⁰ passed "An act to regulate arbitrations and proceedings in courts of justice:" all that is material to this head is contained in the first four sections of that act.

The principal features of this act are these—

1. The award made in *writing* under a written agreement filed in the prothonotary's office, after proof thereof by a *subscribing witness*, is equally available with an award made under a rule of court.

2. An amicable action may be entered in vacation, by the parties themselves, who may then agree to the usual rule of reference.

3. It is required that the award shall be made under the hands and seals of the arbitrators or a majority of them, otherwise it is no award under that law.

4. The daily pay of the arbitrators is fixed, taxable as costs; and they are bound to serve under the penalty of two dollars for every neglect or refusal to attend at the time and place appointed for the meeting. The arbitrators seem to be placed on much the same footing with jurors; and, upon a strict construction of the law, it does not appear how any one chosen can, without incurring the penalty, avoid serving as an arbitrator, in *any* extrajudicial reference agreed to by *writing* unless he can offer the excuses recognized by law.

5. The party who does not attend the arbitrators upon the day appointed becomes liable to pay the costs incurred that day, unless his excuse will justify a postponement; notwithstanding the arbitrators can by certain implication proceed without him, or the party may elect to waive his presence altogether.

An act of assembly entitled "An act regulating arbitrations"⁵¹ has introduced a species of arbitration before that time unknown to our laws, and regulated by rules peculiar to itself. It provides

48. *Buckley v Durant*, 1 Dal. 129, 130. See *Craig v Williams*, 1 Dal. 313, where in the court adopt a principle which confirms the first exception in *Buckley v Durant*—see also Addison's Rep. 225.

49. See 6 Binney's Rep.

50. 4 State Laws, Sm. Ed. 396-7.

51. 5 State Laws, Sm. Ed. 151.

that in all civil suits pending, or that may thereafter be brought, either party, or his agent or attorney, may enter at the prothonotary's office, at any time after the entry of such suits or actions (excepting appeals to the register's court, or issues directed by the said court) a rule of reference, wherein the party shall state his determination to have arbitrators chosen, on a day certain, to be mentioned therein not exceeding thirty days thereafter, for the trial of all matters in variance between the parties; which rule shall be entered by the prothonotary, and certain proceedings pointed out in this act shall be had thereon.

1. The rule must be entered thirty days previous to the first day of the third term after the action brought.

2. When the commonwealth shall be a party, the attorney general or his deputy shall attend to the suit.

3. The §2 of the act prescribes the method of nominating arbitrators and choosing an umpire.

4. The arbitrators are to be resident in the proper county, and are not compellable to serve on more than ten trials in any one year.

5. The parties may fix the time and place of meeting, or if they should not agree upon it, the prothonotary shall fix it.

6. The party entering the rule shall serve it on each arbitrator under a certain penalty.

7. Where an arbitrator or arbitrators do not attend, the vacancy shall be supplied by the parties if they can agree, or if not by the other arbitrators.

8. The arbitrators shall be sworn, or affirmed. They shall have power to call on either party for books, papers and documents: To adjourn from time to time: Their award signed by them, or a majority of them, shall be transmitted to the prothonotary within 7 days;—who shall enter it on his docket; and from the time of such entry it shall have the effect of a judgment and operate as a lien upon real estate.

9. Either party dissatisfied may *appeal*, under the following restrictions—*viz.* 1. The appellant or his agent shall swear or affirm, that it is not for delay such appeal is entered, but because he firmly believes injustice hath been done to the appellant. 2. The appeal shall be entered as well as the recognizance of bail, with the prothonotary: or upon failure to make such entry, an execution, or such other process as may be necessary to carry the judgment into effect shall be issued. 3. A regulation in respect to the stay of execution is established. 4. No appeal is to be allowed until the appellant shall have paid the costs accrued; and on the trial of the appeal the appellant shall not be permitted to produce any books, papers or documents which he may have withheld from the arbitrators.

10. If the plaintiff be the appellant he shall by himself, his agent or attorney, with one or more sureties, be bound in a recognizance on condition that if he shall not recover, in the event of the suit, a sum greater or a judgment more favorable than the report of the

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arbitrators, he shall pay all costs that shall accrue in consequence of the appeal, and one dollar per day for each and every day lost by the defendant in attending to such appeal, which costs shall be taxed and recovered as in other cases.

11. The costs to be paid by an appellant as required, shall, nevertheless, be taxed in the appellant's bill, and recovered of the adverse party in all cases where, in the event of the suit, the appellant is entitled to costs.

12. If the defendant appeal, he shall by himself, his agent or attorney, produce one or more sufficient sureties, who shall enter into recognizance in nature of special bail, on condition that if the plaintiff, in the event of the suit, shall obtain a judgment for a sum equal to or greater, or a judgment as favorable, or more so, than the arbitrators report, the defendant shall pay all costs accruing in consequence of the appeal, together with the sum or value of the thing or property awarded by the arbitrators, with one dollar for each and every day that shall be lost by the plaintiff in attending to such appeal, or in default surrender, &c. Executors and administrators may have an appeal as is allowable in other cases.

13. The prothonotary, an alderman, a justice of the peace, or either of the arbitrators may issue subpoenas, and if necessary *attachments* to compel the attendance of witnesses.

14. If a majority of the arbitrators shall not attend on the day appointed for the meeting, vacancies shall be supplied by the nomination of the parties, or if they cannot agree, by the arbitrators.

15. An attempt by either of the parties to corrupt or influence an arbitrator, subjects the delinquent to the forfeiture of twenty-five dollars.

16. Rules to take depositions to be entered by the prothonotary, on application of either party.

17. Arbitrators may punish contempts and disorderly behaviour in their presence by fine. They are to receive one dollar per day in case they make a report; but unless the same be made and transmitted to the prothonotary within seven days they are entitled to no compensation; and they are subjected to a penalty for neglecting or refusing to serve.

This act is, in its provisions, so novel, and its date is so recent, that an established construction of it is not to be expected.

It may perhaps be stated generally, that where the *appeal* would furnish a remedy, that is the only mode of redress; and that the party who omits to seek such redress shall obtain no other. But where the appeal affords no remedy the court will apply one, if it be in their power.—They will take care that the tribunal be duly organized; but as to any errors in its proceedings, these are the subject of appeal only.